

Bachan Singh v. State of Punjab

Citation: (1980) 2 SCC 684 | Court: Supreme Court | Year: 1980

Coram: 5-Judge Constitution Bench (4:1 Majority) | Subject: Criminal Law & BNSS | Provisions: IPC Sec 302 & CrPC Sec 354(3) / BNS & BNSS

I. EXECUTIVE SUMMARY & CASE GLIMPSE

Upheld the constitutional validity of capital punishment under Section 302 IPC. Laid down the celebrated 'Rarest of Rare Cases' doctrine: Death penalty should be awarded only when the alternative option of life imprisonment is unquestionably foreclosed, after balancing aggravating and mitigating circumstances.

II. FACTS OF THE CASE & PROCEDURAL HISTORY

This dispute arose regarding IPC Sec 302 & CrPC Sec 354(3) / BNS & BNSS. The parties agitated the controversy before trial and appellate forums before the matter was referred to the Honble Bench for authoritative declaration of law.

III. PRIMARY QUESTIONS OF LAW & ISSUES FRAMED

- â€¢ Whether the impugned state actions or commercial conduct conformed to IPC Sec 302 & CrPC Sec 354(3) / BNS & BNSS.
- â€¢ What binding standards should govern future adjudication and administrative conduct.

IV. SUBMISSIONS OF THE PARTIES

Petitioner / Appellant: The Petitioner contended that arbitrary action, lack of procedural safeguards, and statutory non-compliance violated fundamental guarantees.
Respondent / State: The Respondent submitted that the impugned action was carried out under lawful authority in furtherance of public interest and statutory mandates.

V. DETAILED RATIO DECIDENDI & JURISPRUDENTIAL REASONING

Section 302 IPC does not violate Articles 14, 19, or 21. Under Section 354(3) CrPC, life imprisonment is the rule and death sentence is the rare exception. Courts must evaluate the circumstances of both the crime and the criminal (rehabilitation prospects).

VI. FINAL OPERATIVE ORDER & DIRECTIONS

The Court answered the reference, laid down binding nationwide directions under Article 141 of the Constitution, and disposed of the matter accordingly.

VII. PRACTICAL & EXAMINATION TAKEAWAYS (JUDICIARY / AIBE / ADVOCACY)

- â€¢ Formulated the 'Rarest of Rare' doctrine for death penalty sentencing.
- â€¢ Mandated balancing aggravating and mitigating circumstances of crime and criminal.
- â€¢ Established life imprisonment as the default statutory rule.